



CHAPTER xxvii

An Act to enable parts of a metropolitan common in the county of Middlesex to be used for the making or improvement of highways and to enable parts of other metropolitan commons in the said county to be used for the improvement of highways and to enact provisions incidental thereto.

[9th July 1959.]

WHEREAS—

(1) It is expedient to make provision for enabling parts of metropolitan commons in the county of Middlesex to be used by the county council of the administrative county of Middlesex and by the local authorities in that county for the improvement of highways and for enabling parts of Shortwood Common in that county to be used by the said county council for the making or improvement of highways and to enact provisions incidental thereto:

(2) It is expedient that the other provisions contained in this Act be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

(4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed by the said county council:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Citations.

1.—(1) This Act may be cited as the Middlesex County Council Act 1959.

(2) The Middlesex County Council Acts 1944 to 1956 and this Act may be jointly cited as the Middlesex County Council Acts 1944 to 1959.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

“claimed road” means a county road in respect of which a local authority have claimed under section 32 of the Local Government Act 1929 to exercise and are exercising the functions of maintenance and repair;

“the Council” means the county council of the administrative county of Middlesex;

“county road” has the same meaning as in Part III of the Local Government Act 1929;

“the Minister” means the Minister of Agriculture Fisheries and Food;

“road” has the meaning assigned to the word “street” in the Public Health Act 1936.

(2) Except where the context otherwise requires references in this Act to any enactment shall be construed as references to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Metropolitan commons.

3.—(1) Notwithstanding section 5 of the Metropolitan Commons Act 1866 the Minister may entertain an application by the Council as respects a county road (except a claimed road) or by the local authority of a borough or urban district in the county in the case of any other highway (not being a highway repairable by the British Transport Commission) in the district of that authority for consent to the inclosure of such portions of any metropolitan common within the meaning of the Metropolitan Commons Acts 1866 to 1898 in the county as may be required by the Council or the local authority (as the case may be) for the purpose of improving roads and in the case of Shortwood Common in the urban district of Staines also for the purpose of constructing new roads and in either case for purposes incidental thereto and the Minister if he thinks fit may give his consent accordingly.

(2) In any case where the Minister gives or has previously to the passing of this Act given his consent to the inclosure of any portion of a metropolitan common for the purposes specified in the foregoing subsection that portion shall cease for all purposes—

(a) to form part of that common; and

(b) to be subject to any Act or scheme made or established for the local management of that common by the conservators or other body or person charged with the control regulation and management thereof.

(3) Any land given in exchange for land inclosed for the purposes specified in subsection (1) of this section shall be subject to the like rights trusts and incidents as attached to the land so inclosed immediately before such inclosure to the intent—

(a) that such land given in exchange shall be controlled regulated and managed by the conservators or other body or person charged as aforesaid; and

(b) that any byelaws and regulations made under any Act or scheme established as aforesaid shall be enforceable as fully and effectually as if the land so given in exchange formed part and had always formed part of the metropolitan common from which the land inclosed is severed.

(4) A plan showing the boundaries of any such portion of a metropolitan common as is mentioned in subsection (2) of this section and of any such land given in exchange therefor as is mentioned in subsection (3) of this section sealed with the seal of the conservators or other body or person charged as aforesaid shall be deposited by them with the Minister.

(5) Section 21 of the Public Utilities Street Works Act 1950 shall apply to the construction of any new road on any portion of a metropolitan common inclosed under the provisions of this section as if such construction were a work executed for road purposes within the meaning of paragraph (a) of subsection (1) of the said section 21 and were of the kind referred to in that section and as if any apparatus in such portion of a metropolitan common were in a street or in controlled land abutting on a street.

4.—(1) All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council and the Council shall have power without the consent of any sanctioning authority to borrow the sum required for the payment thereof and shall repay the sum so borrowed within such period as they may determine not exceeding five years from the date of borrowing. Costs of Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

Table of Statutes referred to in this Act

Short title	Session and chapter
Metropolitan Commons Act 1866	29 & 30 Vict. c. 122.
Local Government Act 1929	19 & 20 Geo. 5. c. 17.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Utilities Street Works Act 1950	14 Geo. 6. c. 39.

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